IN THE COURT OF APPEALS OF THE STATE OF KANSAS

No. 17-118640-A

STATE OF KANSAS,
Plaintiff-Appellant,

v.

LEE SAWYZER SANDERS,
Defendant-Appellee

Appeal from the District Court of Shawnee County, Kansas
Honorable Mark Braun, District Judge
District Court Case No. 16 CR 2341

BRIEF OF APPELLANT

RACHEL L. PICKERING, #21747
Assistant Solicitor General
Office of the Kansas Attorney General
120 SW 10th Ave., 2nd Floor
Topeka, KS 66612
(785) 296-2215
(785) 291-3131 (fax)
rachel.pickering@ag.ks.gov
Attorney for Appellant

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NATURE OF THE CASE

This is an interlocutory appeal of the district court's suppression of evidence related to the lawful stop and arrest of Lee Sawyzer Sanders.

STATEMENT OF THE ISSUE

Issue: The district court erred in granting Sanders' suppression motion.

STATEMENT OF THE FACTS

On December 12th, 2016, Sanders possessed a baggie of methamphetamine ("meth") and a methamphetamine pipe when he was stopped by Topeka police officers. (R. III, 9-11.) On December 14th, 2016, the State charged Saunders with possession of meth, a level five drug felony, and unlawful use of drug paraphernalia, a class A misdemeanor, in Shawnee County District Court. (R. I, 12-14.)

Officer Belt sees Saunders acting suspiciously

On December 17, 2016, Officers Belt and Saunders were finishing up a call and driving in their patrol vehicle, when Officer Belt witnessed Sanders messing with a handle on a driver's door of a vehicle in the Dominos' parking lot. (R. III, 5, 16.) Officer Belt testified, "We had a lot of issues with stolen vehicles. I didn't know if he was trying to break in to a vehicle or what he was doing with the vehicle itself." (R. III, 6.) The officer observed Sanders in an area where the officer checks for "stolen vehicles every single day". (R. III, 23.)

Officer Belt testified:

> I don't know if he had keys or not, but he was messing with the handle, stopped, looked over his … on his right shoulder, which would have been towards myself and Officer Purney, immediately stopped messing with the handle, and began walking to the west towards the alleyway.
> I pulled around the … I guess it's Dominos and went to … there are two alleys in that area. I went into the smaller one behind Dominos and went north in the alleyway looking for Mr. Sanders. I got into the alley. I initially lost sight of him. It was dark. He had on a darker coat. But I pick him up just out of my peripheral. He was on the south side of 725 Topeka attempting to conceal himself next to the side of a building and a drainpipe.

(R. III, 6.)

Officer Belt told his partner, Officer Purney, that he witnessed Sanders attempting to get into a car. (R. III, 26.) "Once he opened up the door and he saw us, then he closed the car door and fled to the alley behind the case address." (R. III, 26.)

After entering the alley, Officer Belt testified that based on his observations of the car, and what Sanders was doing on the wall, "I didn't know if he was trying to break into a vehicle or what he was doing with the vehicle." (R. III, 6.) Officer Belt stated that he had to turn around in the parking lot and head back into the alley. (R. III, 7.) He observed Sanders leaving from the south side of the building, running or walking up to the same vehicle he was initially seen. (R. III, 7). Officer Belt "hollered at him, hey, I would like to speak with you and at that point he [Sanders] took off running … along the sidewalk on the west side of Topeka Boulevard." (R. III, 7.)

Officer Belt then got out of his vehicle, and went north on the west side of 725 Topeka, cutting through an alley and onto the sidewalk. (R. III, 7). Officer Furney

testified that he went the other way in case Sanders doubled back. (R. III, 29.) Sanders saw Officer Belt when the officer came around the corner, and Sanders turned around and started running back south toward the vehicle. (R. III, 7-8.) At that point, Officer Belt testified, "I just ran behind him, told him to stop, and he got to the vehicle as I ran-rounded around the corner." (R. III, 8.)

Sanders said he had a knife during Officer Belt's detention and safety search.

Officer Belt caught up to Sanders and placed him in handcuffs. (R. III, 8, 33.) Officer Belt detained Sanders for officer safety and because "he had already tried to elude me three or four times. I didn't want him to either try to fight me or to run away again …. " (R. III, 8.) "I handcuffed him, asked him if he had any weapons on him." (R. III, 21.) Sanders told Officer Best that he had a knife in his pocket. (R. III, 9.) Officer Belt then felt his front right pocket where he said the knife was located:

> "I felt a hard object that I believed to be a pocket knife from the feeling through the pants. I removed the items from that pocket and there was no knife located … I asked where-you know, if it's not in his pocket, where the knife could be. He stated either could have been in the vehicle, but he wasn't sure so I asked permission to try to find the knife on his person just so we could secure it and make sure everybody was safe."
>
> (R. III, 9.)

Sanders consented to Officer Belt's request to try to find the knife on Sanders. (R. III, 9.) In searching Sanders' heavy jacket's left breast pocket, Officer Belt found a meth pipe. (R. III, 9.) When the officer showed Sanders the pipe, Sanders also stated that he had forgotten that he had the pipe in his pocket. (R. III, 9.) Officer Belt found a deck of

cards and other miscellaneous items while searching for the knife. (R. III, 10.) Despite Sanders' statement that there was knife on him, the officers did not recover a knife. (R. III, 21.)

Officer Purney discovers Sanders has a felony warrant.

While Officer Best was searching Sanders, Officer Belt located a Kansas Department of Corrections' identification card that said Lee Sanders. (R. III, 29.) The officer checked for wants and warrants and learned that Sanders had a felony warrant out of Shawnee County. (R. III, 26.) Officer Belt testified that he asked Sanders about the warrant, and Sanders said he knew he had the warrant. (R. III, 31.) At that point, Officer Best testified that Sanders was going to be arrested for the Shawnee County warrant. (R. III, 11.)

Officer Belt discovers meth in Sanders' deck of cards.

After finding the warrant, Officer Belt packaged Sanders' items to take to Department of Corrections. (R. III, 10.) Officer Belt testified, "I was just going through to make sure I didn't miss anything at that point." (R. III, 10.) "In the deck of cards, I noticed that there was a crease going down the center of the deck. I opened up the deck by squeezing it and was able to see a small baggy. I removed that baggy and it was a white crystalline substance that was in the deck of cards." (R. III, 11.) Officer Belt attempted to read Miranda rights to Sanders after the warrant was found, but was not able to get through them. (R. III, 31.) Officer Belt also attempted to advise Sanders of his

Miranda rights while in the sally port of the jail, but Sanders did not want to talk to him. (R. III, 31, 32.)

Arguments presented at the suppression hearing:

After the presentation of evidence, the State argued why the evidence should not be suppressed, explaining why there was reasonable suspicion:

> Your Honor, the testimony was from Officer Belt that he saw this defendant at the car door of the vehicle on the driver's side. He saw him open the door and then he looked out his shoulder, saw that there were officers there and he closed the door and then he went behind 725 Southwest Topeka Boulevard. At that point, he pursued him because he had testified that there were a lot of cars stolen in that area and that the defendant was acting suspicious, so he went around to the alley. When he saw the defendant again, it was out of his peripheral and the defendant was up against the wall in a manner consistent with trying to conceal himself from the officers. At that point when officers tried to make contact with him, he ran around the building and then once he got around the building, he continued to run.
>
> (R. III, 33-35.)

The defense argued that Sanders was arrested when he was detained, and the officers did not have probable cause to arrest him:

> He wasn't doing any illegal and the fact that he was stopped for not getting into his vehicle does not rise to the level of probable cause for this warrantless arrest and I would submit to the Court that as soon as those handcuffs went on him, he was under arrest and not free to go and everything that came after that is fruit of the poisonous tree.
>
> (R. III, 37.)

In response, the State explained:

Your Honor, defense could be correct if this individual hadn't run and tried to conceal himself by the building. Those actions constitute a reasonable suspicion for the officer to investigate further. The reason that I asked the question about would it be fair to characterize this as an officer-safety related is because Officer Belt had immediately testified before that question, I placed him in cuffs because he had run from me and I didn't want him to run again or fight me.

(R. III, 38.)

The Court's ruling

All right. Counsel, this hearing is troublesome to the Court. I've got what looks like, based on the Court's observations, two relatively young officers and there's been no testimony about how long they've been on the force or how long they've been law enforcement officers. But they both appear relatively young to the Court.

I am usually one who is very supportive of law enforcement being able to do the things they need to do for public safety, being able to do the things they need to do when it comes to an encounter. But the officers have had some contradictory testimony where one says that they were already stopped and parked in the parking lot behind the vehicle that the defendant was found to be wither messing with the handle or whatever else was going on, and the other officer says they were just driving down the road and on uninitiated activity and found or saw, observed what the defendant was allegedly doing. I'm not as concerned about whether they got the address right or wrong. It's a bit of a factor, but they were just at an address that was that area, that location. But the officer says, no, they were driving by and just happened to observe this.

The issue of whether the defendant walked away and whether it's a black man or a white man, I think some of the other issues are there as well that-what an officer observed or what the individual has a right to do. And I -too much, for me anyway at this time, too much of the answers to the questions or the scenario posed by both officers appears to be that of filling in the blanks after the fact as opposed to what they did, why they did at the time. And I'm not always suspicious of what an officer testifies to, but I try to listen and balance what that officer tells me.

There were so many things that Officer Belt did not know, a number of things that Officer Purney did not know. Purney seems to rely heavily upon what Belt told him about some of these things. The defendant apparently walked away initially and then at some point, may have run from the officer. I'm not clear that the officer was truly investigating or was making

contact with somebody who was committing or had committed or was about to commit a crime. And I realize officers are free to make contact but at the same time, individuals are free to not have contact with law enforcement.

The issues of getting to the vehicle and observing the defendant and his response, that the part that the Court from the testimony, that I have difficulty with. Once they did make contact with him, the defendant was immediately cuffed because the defendant walked away, tried to not have contact with law enforcement. And yes, there was some running, but it was still never clear and that's the part of the part where as I watched the officers and their facial expressions as they testified separately and watched and listened to what their conduct was, the things that might have been questionable, they could not recall, were not aware of, and it was things that they seemed - the impression I get from listening to their testimony is that they pieced things together after the fact.

And, again, the language by - well, the language by Purney about a self-initiated activity I've heard phrases like that, but I just see some contradictions and inconsistency in the testimony between the officers and that doesn't really balance or fit the two with each other.

The other part-well, my initial issue is the contact that the officer had in taking the defendant into custody, I have great difficulty with and I've tried to look at the fact of balancing whether the - I don't remember if it's the Attenuation Doctrine. You know, at some point, they find out that there's a warrant but my belief, counsel, is that the activity or that the whole issue of seizing the defendant, I have great difficulty with based on the testimony that I've heard.

What I'm going to do is I'm going to suppress the evidence that was made - or excuse me, found. I'm going to suppress the statements by the defendant as well. There was an attempt initially in the contact about weapons - I don't know that - I'm not going to suppress the weapon - I don't know that - I'm not going to suppress the weapon part because if they are frisking the defendant which, again, I still think the whole thing had been set up to be able to make contact and for those things with the defendant. Then they find out about the warrant. I'm going to allow the statement about the weapon but the statement about the warrant, the defendant apparently cut off the officer and he was not able to get the full statement, it sounds like of being able to hear the officer's Miranda. But then he proceeds to question him about the warrant knowing he didn't want to talk. So I am going to suppress that statement.

(R. III, 38-42.)

The district court did not address whether the officers had reasonable suspicion to stop Sanders, whether there was probable cause to arrest Sanders, and did not apply the attenuation doctrine. The State timely filed a notice of appeal. (R. I, 33.)

ARGUMENTS AND AUTHORITIES

Issue: The district court erred in granting Sanders's motion to suppress.

Preservation

The State may file an interlocutory appeal when the district court suppresses evidence. K.S.A. 22-3603. (R. I, 33.) At the pretrial hearing, the district court granted the defendant's suppression motion. (R. III, 38-42.)

Standard of Review

When reviewing a district court's decision suppressing evidence, an appellate court reviews the factual underpinnings of a district court's decision by a substantial competent evidence standard and the ultimate legal conclusion drawn from those facts by a de novo standard. The ultimate determination of the suppression of evidence is a legal question requiring independent appellate review. *State v. Mendez*, 275 Kan. 412, 416, 66 P.3d 811 (2003).

ARGUMENT

Introduction

The district court erred in granting Sanders' suppression motion. At the suppression hearing, the State had proved the lawfulness of the seizure, search, and arrest of Sanders. The State presented evidence that Sanders was lawfully arrested for an outstanding Shawnee County warrant. (R. III, 11.) After officers arrested Sanders, an officer found meth during the pre-incarceration inventory of Sanders' personal effects. The items had been retrieved from a search of Sanders. Even if this Court finds that the seizure and search were unlawful, under the attenuation doctrine, the baggie of meth and meth pipe should not be suppressed.

The district court's ruling, however, fails to properly address the evidence presented to support the reasonable suspicion to seize Sanders; the lawful arrest of Sanders due to the Shawnee County warrant, and the attenuation doctrine. Finally, as shown in this case, based on the discovery of Sanders' warrant, the illegally obtained items would have inevitably been discovered during the officers' pre-incarceration inventory of Sanders' personal effects. This Court must reverse the district court's ruling.

Officer Belt had reasonable suspicion to stop Sanders.

"The Fourth Amendment protects "[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures." Without a warrant, a search is unreasonable unless it falls within a recognized exception.

State v. Canaan, 265 Kan. 835, 840, 964 P.2d 681 (1998) (citing *Katz v. United States*, 389 U.S. 347, 357, 88 S.Ct. 507, 19 L.Ed.2d 576 [1967]).

K.S.A. 22-2402 provides:

> "(1) Without making an arrest, a law enforcement officer may stop any person in a public place whom such officer reasonably suspects is committing, has committed or is about to commit a crime and may demand of the name, address of such suspect and an explanation of such suspect's actions.
> "(2) When a law enforcement officer has stopped a person for questioning pursuant to this section and reasonably suspects that such officer's personal safety requires it, such officer may frisk such person for firearms or other dangerous weapons. If the law enforcement officer finds a firearm or weapon, or other thing, the possession of which may be a crime or evidence of crime, such officer may take and keep it until the completion of the questioning, at which time such officer shall either return it, if lawfully possessed, or arrest such person."

Investigatory detentions are generally permitted under the Fourth Amendment to the United States Constitution and K.S.A. 22-2402 if "an objective officer would have a reasonable and articulable suspicion that the detainee committed, is about to commit, or is committing a crime." *State v. Pollman*, 286 Kan. 881, 889, 190 P.3d 234 (2008) (citing *Terry v. Ohio*, 392 U.S. 1, 88 S.Ct. 1868, 20 L.Ed.2d 889 [1968], and *State v. Thompson*, 284 Kan. 763, 773, 166 P.3d 1015 [2007]); see also *State v. Thomas*, 291 Kan. 676, 687, 246 P.3d 678 (2011).

In defining the reasonable suspicion standard, the United States Supreme Court stated:

> "While 'reasonable suspicion' is a less demanding standard than probable cause and requires a showing considerably less than preponderance of the evidence, the Fourth Amendment requires at least a minimal level of

> objective justification …. [Citation omitted.] The officer must be able to articulate more than an 'inchoate and unparticularized suspicion or "hunch"' of criminal activity. [Citation omitted.]"

Illinois v. Wardlow, 528 U.S. 119, 123, 120 S.Ct. 673, 145 L.Ed.2d 570 (2000).

Under K.S.A. 22-2402, the seizure of Sanders was lawful. Due to Sanders' suspicious behavior, the encounter between law enforcement and Sanders was investigatory. (R. III, 22.) Officer Belt testified how he first noticed Sanders attempting to get in a car in an area where a lot of vehicles had been stolen:

> "I believed it was suspicious when he came out, was messing with a handle of a car, looks over his shoulder at a police officer and a police car, he immediately stops messing with it and walks away." (R. III, 22.)

(Emphasis added.)

Also, Officer Belt testified how there had been a lot of stolen vehicles in the same area that Sanders was: "We had a lot of issues with stolen vehicles. I didn't know if he was trying to break in to a vehicle or what he was doing with the vehicle itself." (R. III, 6.)

It was further suspicious when Sanders walked west towards the alleyway and attempted to evade the officers by concealing himself next to the side of the building. (R. III, 6.) As noted by the State at the suppression hearing: Sanders ran and "tried to conceal himself by the building. Those actions constitute a reasonable suspicion for the officer to investigate further." (R. III, 38.)

When officers followed Sanders into the alley, Officer Belt testified,

> "I initially lost sight of him. It was dark. He had on a darker coat. But I picked him up just out of my peripheral. He was on the south side of 725 Topeka attempting to conceal himself next to the side of a building and drainpipe."

(R. III, 6.) (emphasis added). When officers tried to speak to Sanders, he would not stop when they requested, but instead ran away. (R. III, 7.) The officers then had to chase him back to the vehicle. Officer Belt was able to catch up to Sanders, and then placed him in cuffs for safety precautions. (R. III, 8.)

In *Illinois v. Wardlow*, 528 U.S. 119, 124, 120 S.Ct. 673, 145 L.Ed.2d 570 (2000), the United States Supreme Court considered whether there was reasonable suspicion to justify the seizure of the defendant. In *Wardlow*, a police caravan drove into a neighborhood known for heavy drug trafficking. When the caravan drove past one house, the defendant was standing near the building holding an opaque bag. The defendant fled when he saw the officers. Following a short case, the officers seized the defendant and upon a pat-down search of him and his bag, found a hard object that was later determined to be a gun. The defendant was arrested for felon in possession of a weapon.

In determining if there was reasonable suspicion, the *Wardlow* court held that the defendant's presence in "an area of expected criminal activity" together with his unprovoked flight at the sight of seeing the police was sufficient to constitute reasonable suspicion. *Wardlow*, 528 U.S. at 124. *Wardlow* is significant because it explained that that nervous, evasive behavior such as an unprovoked flight is a relevant factor in determining reasonable suspicion:

> Our cases have also recognized that nervous, evasive behavior is a pertinent factor in determining reasonable suspicion. Headlong flight - wherever it occurs - Is the consummate act of evasion: It is not necessarily indicative of wrongdoing, but it is certainly suggestive of such. In reviewing the propriety of an officer's conduct, courts do not have available empirical studies dealing with the inferences draw from suspicious behavior, and we cannot reasonably demand scientific certainty from judges or law enforcement officers where none exists. Thus, the determination of reasonable suspicion must be based on commonsense judgments and inferences about human behavior."

Wardlow, 528 U.S. at 124-25 (emphasis added).

In *State v. Anderson*, No. 99,779, 2009 WL 1591399 (issued June 5, 2009) (unpublished) (attached), this Court considered whether there was reasonable suspicion of illegal activity that justified the defendant's seizure. Particularly, the defendant immediately fled from the officer when the officer attempted to investigate the defendant's activity. There, the district court had identified three facts to support its conclusion that there was reasonable suspicion:

(1) The police officer personally observed a foot chase in progress late at night in a high crime area;

(2) when the individuals involved in the foot chase noticed the police officer, they immediately stopped running; and

(3) when the police officer indicated his intention to verify the defendant's story about what had happened, the defendant immediately took flight and ran away from the officer.

Anderson, 2009 WL 1591399 at *4.

The *Anderson* court looked to *Wardlow* for guidance due to the similar facts. After reviewing *Wardlow*, this Court also found there was reasonable suspicion: "The facts of our case establish an unexplained foot chase in progress late at night in a high crime area, an immediate termination of the foot chase upon noticing the presence of law enforcement, and unprovoked flight after law enforcement indicated an intention to investigate the circumstances. " *Anderson*, 2009 WL 1591399 at *5. After considering all of these facts together, the *Anderson* court held that the officer had knowledge of facts giving rise to a reasonable and articulable suspicion that when he seized the defendant, the defendant "had committed, was committing, or was about to commit a crime." *Anderson*, 2009 WL 1591399 at *5. In sum, the defendant's criminal activity, which included unprovoked flight after law enforcement indicated an intention to investigate the circumstances, supported a reasonable, particularized suspicion that the defendant was committing a crime.

Similarly, here Sanders' unprovoked flight after the officers indicated an intention to investigate his attempt to enter the vehicle, along with his other evasive behavior supported a reasonable, particularized suspicion that Sanders was committing a crime. Here, there were more factors than just Sanders begin present in an area known for having vehicles stolen. The officers had reasonable suspicion to stop Sanders due to his very suspicious behavior leading up to when he was seized. Initially, as he attempted to get into a car, Sanders noticed the officers watching him as he looked over his shoulder, and then he walked away from the car. The officer specifically testified how he found this

behavior suspicious. “I believed it was suspicious when he came out, was messing with a handle of a car, looks over his shoulder at a police officer and a police car, he immediately stops messing with it and walks away.” (R. III, 22.)

Similar to the defendant in *Wardlow*, Sanders fled from the officers. Then, he attempted to physically conceal himself from the officers. While the officers were looking for him, he concealed “himself next to the side of a building and drainpipe” in an attempt to evade the officers. (R. III, 6.) Additionally, when officers tried to speak to Sanders, he would not stop when they requested, but instead ran away. (R. III, 7.) Finally, he continually fled from the officers until he was finally seized by the officers. (R. III, 6.)

The district court, however, brushed over the evidence presented of Sanders’ suspicious behavior. In its ruling, the court merely stated:

> The defendant apparently walked away initially and then at some point, may have run from the officer. I’m not clear that the officer was truly investigating or was making contact with somebody who was committing or had committed or was about to commit a crime. And I realize officers are free to make contact but at the same time, individuals are free to not have contact with law enforcement.
> The issues of getting to the vehicle and observing the defendant and his response, that the part that the Court from the testimony, that I have difficulty with. Once they did make contact with him, the defendant was immediately cuffed because the defendant walked away, tried to not have contact with law enforcement.

(R. III, 40.)

The district court did not address Sanders’ suspicious behavior when he was first spotted by the officers: how Sanders was attempting to get into a car in an area known for vehicles being stolen, while looking over his shoulder at the officers, and then walked

away from the officers instead of getting in the car. This suspicious behavior coupled with his attempts to evade the officers by physically evading the officers by concealing himself next to the side of the building; his refusal to speak to the officers when they attempted to initially speak with him; and he continuous runs from the officers was sufficient to establish reasonable suspicion for an investigative detention.

In reviewing an officer's belief of reasonable suspicion, an appellate court determines whether the totality of the circumstances justifies the detention, giving deference to a trained law enforcement officer's ability to distinguish between innocent and suspicious circumstances. *State v. Walker*, 292 Kan. 1, Syl. ¶ 6, 251 P.3d 618 (2011). The officers had more than an unparticularized suspicion or hunch of criminal activity given Sanders' behavior once he first saw the officers, his behavior of walking away from the vehicle, his running from the officers, and attempts to physically conceal himself form the officers. The officers' reasoning was not subjective but instead was based on specific, articulable, and objective facts. See *Wardlow*, 528 U.S. at 123.

The stop was justified because there was reasonable suspicion to believe that a crime was in commission or had occurred based on the circumstances. See *Wardlow*, 528 U.S. at 125. The district court thereby erred in its ruling.

The Terry stop had not turned into an arrest.

Though not every investigative detention warrants handcuffs, "a Terry stop does not become unreasonable just because police officers use handcuffs on a subject or place him on the ground." *United States v. Neff*, 300 F.3d 1217, 1220 (2002) (citing *United*

States v. Perdue, 8 F.3d 1455, 1462 [10th Cir. 1993]); *United States v. Holmes*, 487 F. Supp. 2d 1206, 1215 (D. Kan. 2007).

In *United States v. Perdue*, 8 F.3d at 1462, the 10th Circuit held that the officers were justified in displaying "some force" when they had to display their weapons at a suspect. The *Perdue* court found that the officers were justified in ordering the defendant out of the car and onto the ground "as a means of neutralizing the potential danger." *Perdue*, 8 F.3d at 1463. "It was not unreasonable under the circumstances for the officers to execute the Terry stop with their weapons draw." The *Perdue* court explained, "[w]hile Terry stops generally must be fairly nonintrusive, officers may take necessary steps to protect themselves if the circumstances reasonably warrant such measures." *Perdue*, 8 F.3d at 1462.

Perdue, moreover, recognized how other courts found it reasonable for police to use handcuffs or place suspects on the ground during a Terry stop. The court noted how the Tenth Circuit along with several other court of appeals, had determined that "such intrusive precautionary measures do not necessarily turn a lawful Terry stop into an arrest under the Fourth Amendment." *Perdue*, 8 F.3d at 1463 (citing *United States v. Merkley*, 988 F.2d 1062, 1064 (10th Cir.1993) (display of firearms and use of handcuffs); *United States v. Smith*, 3 F.3d 1088 (7th Cir.1993) (handcuffs); *United States v. Safeels*, 982 F.2d 1199, 1206 (8th Cir.1992) (handcuffs), cert. granted, judgment vacated, 510 U.S. 801, 114 S.Ct. 41, 126 L.Ed.2d 12 (1993) vacated on other grounds); *United States v. Esieke*, 940 F.2d 29, 36 (2d Cir.) (handcuffs and leg irons), cert. denied, 502 U.S. 992, 112 S.Ct.

610, 116 L.Ed.2d 632 (1991); *United States v. Crittendon*, 883 F.2d 326, 329 (4th Cir.1989) (handcuffs); *United States v. Kapperman*, 764 F.2d 786, 790 n. 4 (11th Cir.1985) (placing suspect in police car in handcuffs); *United States v. Taylor*, 716 F.2d 701, 709 (9th Cir. 1983) (making suspect lie on ground in handcuffs).

Here, the precautionary measure the officers took did not turn this lawful Terry stop into an arrest under the Fourth Amendment. Officer Belt testified that the reason he put Sanders in handcuffs was related to officer safety and "to detain him as he had already tried to elude me three to four times. I didn't want him to either try to fight with me or to run away again." (R. III, 8.)

Because the precautionary measure of force employed by the officers was reasonable in light of these circumstances, this Court should find that the officers conducted a reasonable Terry stop. Sanders was not under arrest until the discovery of his outstanding Shawnee County search warrant.

Officer Belt's search for the knife was proper as an officer safety search incident to the pat-down of Sanders person and Sanders' statement that he had a knife on his person.

Officer Belt had reasonable suspicion to pat-down Sanders due to officer safety and the officer "didn't want him to either try to fight me or run away again." (R. III, 8.) Importantly, during the pat-down, Sanders told Officer Belt that he had a knife on him. (R. III, 9.) Officer safety became an even greater concern when the knife was not where Sanders claimed it would be.

During an investigatory stop, law enforcement are entitled to make a limited search for weapons that might be used to harm them when they have a reasonable, articulable suspicion of danger. *United States v. Thomson*, 354 F.3d 1197, 1200 (10th Cir. 2003) (citing *Terry*, 392 U.S. at 24); see also *State v. Bannon*, ___ Kan. ___, 398 P.3d 846 (2017) (citing *Rodriguez v. United States*, 575 U.S. ___, 135 S.Ct. 1609, 1616, 191 L.Ed.2d 492 [2015], wherein the United States Supreme Court noted the government's "officer safety interest" in context of extending seizures during traffic stops, which can be "'especially fraught with danger to police officers"').

The United States Supreme Court has explained:

> "The rule allowing contemporaneous searches is justified, for example, by the need to seize weapons and other things which might be used to assault an officer or effect an escape, as well as by the need to prevent the destruction of evidence of the crime—things which might easily happen where the weapon or evidence is on the accused's person or under his immediate control."

Preston v. United States, 376 U.S. 364, 367, 84 S. Ct. 881, 883 (1964).

Officer Belt also properly detained and asked Sanders if he had any weapons on his person. (R. III, 8-9). See, K.S.A. 22-2402(2), e.g., *Michigan v. Long*, 463 U.S. 1032, 1036, 103 S. Ct. 3469, 77 L.Ed.2d 1201 (1983) (upon observing knife in car, officer frisked suspect and searched car for additional weapons); *Pennsylvania v. Mimms*, 434 U.S. 106, 107, 98 S. Ct. 330, 331, 54 L. Ed. 2d 331 (1977) (officer performed Terry frisk fearing that bulge might be a weapon); *Adams v. Williams*, 407 U.S. [143,] 145, 92 S. Ct.

1921, 32 L. Ed 2d 612 (1972) (officer was informed that suspect had a gun in his waist); *United States v. Trullo*, 809 F.2d 108, 110 (1st Cir.) (bulge in suspect's pocket) (1987).

In this case, Officer Belt had a reasonable basis for suspecting a weapon was on Sanders' person because Sanders' told how him that he had a knife in his pocket. (R. III, 8.) In response to Sanders' statement, Officer Belt felt Sanders' front right pocket where he said the knife was. (R. III, 9.) He felt a hard object he believed to be a knife and removed the item. (R. III, 9.) The officer recovered a key, not the knife. (R. III, 9, 32.) Officer Belt proceeded to ask Sanders where the knife could be; Sanders said okay to Officer Belt searching his other pockets to "secure it and make sure everyone was safe." (R. III, 9.)

Officer Belt testified "He had a large, again, heavy jacket on. It was December. On the left breast pocket, there was a methamphetamine pipe I located inside of it … I found a deck of cards and a bunch of other miscellaneous items." (R. III, 9-10.) Noted in the preliminary hearing, Officer Belt only "searched the remainder of his pants pockets and then the pockets of the large coat he was wearing". (R. II, 9.) The Officer did have Sanders consent to look for the knife. No knife, however, was recovered, but a pack of cards, which later was determined to contain a baggie of meth, and a key. The search of Sanders was proper.

The attenuation doctrine also applies in this case.

Should this Court find the seizure and search were unlawful, the items in Sanders' possession would have been discovered when he was arrested for the outstanding

Shawnee County warrant. Sanders would have been searched based on the arrest of his outstanding felony warrant. (R. III, 11.) Also, as shown here, the evidence would have inevitably been discovered through an inventory check prior to the officers taking Sanders to the Department of Corrections.

In ruling, the district court said:

> "I've tried to look at the fact of balancing whether the - I don't remember if it's the Attenuation Doctrine. You know, at some point, they find out that there's a warrant but my belief, counsel, is that the activity or that the whole issue of seizing the defendant, I have great difficulty with based on the testimony that I've heard."

(R. III, 41).

At the district court, the issue of Sanders' outstanding warrant - and thus his lawful arrest and inevitable discovery of the meth was raised by the State in both Officer Belt's direct testimony as to why Sanders was arrested and in the State's arguments to the court. (R. III, 11, 36.)

The Attenuation Doctrine

Under the attenuation doctrine, evidence is admissible when the connection between unconstitutional police conduct and the evidence is remote or has been interrupted by some intervening circumstance, "but also when suppression would not serve the interest protected by the constitutional guarantee violated." *Hudson v. Michigan*, 547 U.S. 586, 586, 126 S. Ct. 2159, 2160, 165 L. Ed. 2d 56 (2006) (holding that violation of knock-and-announce rule did not require the suppression of all evidence found in the search); *Utah v. Strieff*, 579 U.S. ___, 136 S. Ct. 2056, 2061, 195 L. Ed. 2d

400 (2016). "The determination of dissipation is heavily fact-bound and, thus, dependent upon case-specific circumstances." *State v. Maier*, No. 115,248, 2017 WL 4216264 at *4 (issued Sept. 22, 2017) (unpublished opinion) (attached).

In analyzing whether the seizure of evidence is attenuated from the illegality, this Court considers:

(1) the time elapsed between the illegality and the acquisition of the evidence;

(2) the presence of intervening circumstances; and

(3) the purpose and flagrancy of the official misconduct.

Strieff, 136 S. Ct. at 2061-62.

Consideration of the factors for attenuation:

The time elapsed between the illegality and acquisition of the evidence favors suppress because there was not a substantial about of time between the stop, search for weapons, running of identification, and discovery of the warrant. (R.III, 8-9, 21, 25-26, 31). However, the presence of intervening circumstances, namely, the discovery of an outstanding Shawnee County warrant and the lack of official misconduct favor, both strongly favor the State. Courts have held that evidence of two of the three factors supports refusal of suppression of evidence under the attenuation doctrine. See *Strieff*, 136 S. Ct. at 2060.

The intervening circumstance attenuating the unlawful conduct was the discovery of Sanders' outstanding warrant.

In *Utah v. Strieff*, the United States Supreme Court held that officer's discovery of valid, pre-existing arrest warrant attenuated connection between unlawful investigatory stop and drug-related evidence seized from defendant during search incident to arrest, abrogating *State v. Moralez*, 297 Kan. 397, 300 P.3d 1090 (2013). As such, an intervening act like the discovery of an outstanding warrant prevents suppression.

Additionally, in *State v. Christian*, this Court held that the attenuation doctrine should apply because the discovery of an expired license plate attenuated the initial illegal seizure. *Christian*, No. 116,133, 2017 WL 3947406 at *9 (issued Sept. 8, 2017) (unpublished) (attached). In that case, the officers did not know of the intervening event, i.e., the expired license plate, until after the initial encounter with the defendant. The court found that the suppression was not appropriate because the officers' initial seizure was attenuated by the intervening event and the officer lacked flagrant misconduct. *Christian*, 2017 WL 3947406 at *9.

Similarly, in this case, the intervening event was the discovery of Sanders' outstanding Shawnee County warrant. Sanders would have been arrested for the warrant. (R. III, 11.) In its arguments and presentation of evidence, the State stressed that Officer Belt was going to arrest Sanders for the warrant and not for the methamphetamine or paraphernalia. And Officer Furney testified that Sanders had an outstanding warrant based on the running of his name on the ID provided to officers. (R. III, 26.) The warrant gave the officers justification to arrest Sanders. Once Sanders was lawfully arrested, the

officers conducted a pre-incarceration inventory of the items found on Sanders' person and found the meth. The existence of the warrant strongly favors the State.

Finally, the stop of Sanders was not related to "systemic or recurrent police misconduct." *Christian*, 2017 WL 3947406 at *9. In this case, the Officer Belt detained, patted-down, and searched for weapons (specifically the knife) of Sanders, while the Officer Purney found an outstanding criminal warrant. (R. III, 8-9, 21, 25-26, 31.) Officer Belt detained Sanders because he had already tried to elude him three or four times. "I didn't want him to either try to fight me or to run away again." (R. III, 8.) Officer Belt then asked him if he had any weapons on him and the purpose of this question was officer safety. (R. III, 21, 31.) Officer Belt proceeded to ask Sanders where the knife could be, and Sanders said okay to officers searching his other pockets to "secure it and make sure everyone was safe". (R. III, 9.) In this case, there is no official misconduct by either officer.

In sum, the attenuation doctrine should apply here because there was a sufficient break in the casual connection between the initial illegal seizure and the discovery of the evidence. The officers would have arrested Sanders for his outstanding felony warrant after Officer Purney ran Sanders' identification. Upon his arrest, the meth was discovered.

The inevitable discovery doctrine

The test under the inevitable discovery rule is that, if the prosecution establishes by a preponderance of the evidence that the unlawfully obtained evidence ultimately or

inevitably would have been discovered by lawful means, the evidence is admissible. *State v. Brown*, 245 Kan. 604, 612, 783 P.2d 1278 (1989) (citing *Nix v. Williams*, 467 U.S. 431, 104 S.Ct. 2501, 81 L.Ed.2d 377 [1984]) (the prosecution may use evidence it obtained illegally but would have obtained legally in any event).

Here, the pre-incarceration inventory that Officer Belt conducted of the items found on Sanders establishes inevitable discovery. Police are allowed to search any article in the possession of an arrested person in accord with routine inventory procedures. *Illinois v. Lafayette*, 462 U.S. 640, 648, 77 L.Ed.2d 65, 103 S.Ct. 2605 (1983).

In *State v. Ingram*, 279 Kan. 745, 113 P.3d 228 (2005), the Kansas Supreme Court upheld a lower court decision that drugs taken from a suspect's pocket would have been inevitably discovered during a jail inventory search. And in *State v. Stowell*, 286 Kan. 163, 167, 182 P.3d 1214 (2008), the police illegally searched the defendant after he was arrested, and the State argued that cocaine found on his person inevitably would have been discovered at booking and during an inventory search at the jail.

Similarly, the meth pipe and meth in the deck of cards on Sanders' person would have been discovered based on the Officer Belt's testimony that Sanders was arrested for the outstanding warrant. (R. III, 11.) As such, the district court should have applied the inevitable discovery exception to the exclusionary rule.

The baggie of meth was found when Officer Belt noticed the crease in the center of the deck of cards when he was packaging Sanders' items to take to DOC. (R.III,

10-11.) As shown here, the possession of meth had been discovered after Sanders was placed into custody for his outstanding Shawnee County felony warrant. That is, the discovery of drugs on Sanders was inevitable because a pre-incarceration inventory of Sanders' personal effects was an inevitable consequence of having a warrant.

At the suppression hearing, Officer Belt testified that he conducted a pre-incarceration inventory of the items founds on Sanders, and upon the inventory, he discovered the meth. He packaged Sanders' items to take to DOC. (R. III, 10.) "I was just going through to make sure I didn't miss anything at that point." (R. III, 10.) Further, in its argument to the court, the State explained, "it wasn't until after the warrant, after he was for sure going to jail that the methamphetamine was found inside the deck of cards." (R. III, 36.)

The underlying rationale for the exclusionary rule has not been met.

Lastly, the United States Supreme Court has rejected "[i]ndiscriminate application" of the exclusionary rule. *United States v. Leon*, 468 U.S. 897, 908, 104 S.Ct. 3405, 82 L.Ed.2d 677 (1984). The exclusionary rule is applicable only "where its deterrence benefits outweigh its 'substantial social costs,'" *Pennsylvania Bd. of Probation and Parole v. Scott*, 524 U.S. 357, 363, 118 S.Ct. 2014, 141 L.Ed.2d 344 (1998). Courts should apply the exclusionary rule and suppress any evidence unconstitutionally obtained to give effect to the Fourth Amendment's guarantee against unreasonable searches and seizures, and to deter illegal police conduct. See *Nix v. Williams*, 467 U.S. at 442-43, *Weeks v. United States*, 232 U.S. 383, 398, 34 S. Ct. 341,

58 L.Ed. 652 (1914); see also *State v. Smith*, 243 Kan. 715, 724, 763 P.2d 632 (1988) ("to deter law enforcement and other government officials and agents from unreasonable intrusions upon the lives and property of citizens."). Here, the rationale behind the exclusionary rule was not met. The district court erred in granting Sanders' motion to suppress.

CONCLUSION

For the above and foregoing reasons, the State respectfully requests this Court to reverse the district court's suppression ruling.

Respectfully submitted,

OFFICE OF THE ATTORNEY GENERAL

/s/ *Rachel L. Pickering, #21747*
Rachel L. Pickering, #21747
Assistant Solicitor General
Office of the Kansas Attorney General
120 SW 10th Street, 2nd Floor
Topeka, KS 66612
(785) 296-2215
Fax: (785) 291-3875
rachel.pickering@ag.ks.gov

CERTIFICATE OF SERVICE

I hereby certify that on January 12, 2018, a copy of this Appellant's Brief was served on Stacey Donovan, #18384, by email to sdonovan@sbids.org.

OFFICE OF THE ATTORNEY GENERAL

/s/ *Rachel L. Pickering, #21747*
Rachel L. Pickering, #21747
Assistant Solicitor General
Office of the Kansas Attorney General
120 SW 10th Street, 2nd Floor
Topeka, KS 66612
(785) 296-2215
Fax: (785) 291-3875
rachel.pickering@ag.ks.gov